

Peacekeeping in Lebanon and Civilian Protection

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Abstract

A major challenge to contemporary peace operations is the need to protect civilians. UNIFIL has been criticized for being ineffective and risk averse. The original mandate made no reference to civilian protection, but the protection of Lebanese civilians became an issue of concern when their treatment by Israeli forces in the aftermath of the 1982 Israeli invasion was brought to the attention of the Security Council. Since the invasion had transformed the situation on the ground, safeguarding the civilian population provided an interim solution to the disregard of United Nations Peacekeeping Force in Lebanon (UNIFIL's) authority by Israel. While the performance of humanitarian tasks as an interim measure was a worthwhile attempt to ease the plight of the local population, the loss of face and inability to prevent Israeli incursions damaged both the credibility and morale of UNIFIL. In the summer of 2006, the conflict between Hizbollah and Israel 'radically changed' the context in which UNIFIL operated. Resolution 1701 authorized a reconfigured UNIFIL to take all necessary action to protect civilians under imminent threat of physical violence. The creation of a Strategic Military Cell facilitated European engagement and rapid deployment. Nonetheless, it had definite drawbacks. While UNIFIL has successfully maintained a fragile peace, important aspects of the mandate remain unfulfilled. The primary responsibility for the protection of civilians remains the Lebanese Government. The 2006 conflict demonstrated that it is not possible to provide effective protection in the context of armed hostilities between Israel and Hizbollah. Today, UNIFIL seems dependent on the Government and maintaining good relations with armed elements for its security. Such a situation is inconsistent with it performing an effective protection role.

1. Introduction

The armed conflict in Lebanon between Israel and Hizbollah in 2006 highlighted the political volatility of the region and the precarious situation of the United Nations Peacekeeping Force in Lebanon (UNIFIL). Since its inception, UNIFIL has been the largest UN force in the region and remains the UN's most significant military presence in the Middle East. The force was first deployed as an 'interim' peacekeeping mission in 1978. It has gone through many stages,

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including an 'enhancement' and reconfiguration in the aftermath of the 2006 conflict. This also marked a return to UN Blue Helmet operations of European forces, the first such engagement for most since the controversial UNPROFOR mission in the former Yugoslavia and the debacle of UNOSOM II in Somalia. In fact, France, Italy and the UK were among the driving forces behind the reconfigured UNIFIL. In essence, the mission can be summarized as providing a security buffer in the south, while creating the conditions needed to stabilize the situation. Its most important achievement was making the 2006 cessation of hostilities possible in the first place and facilitating its maintenance ever since. Although it is widely acknowledged that UNIFIL possesses neither the mandate nor the means to resolve the underlying issues that precipitated the conflict, it has succeeded in its limited objective of maintaining the peace. This raises the question, is this sufficient and could UNIFIL have done more to date than merely 'keep a lid on things'? The answer to this question lies in understanding the nature and intended effect of the revised mandate.

The single greatest challenge to contemporary peace operations is the need to protect vulnerable groups and it is often expressed in terms of the responsibility to protect civilians.¹ Greater awareness of the role of peacekeeping missions in the creation of a secure environment for civilians has meant an increase in the rhetoric of protection, but the question of its achievement remains open. The past decade has witnessed the prioritizing of the protection of civilians in statements and resolutions emanating from the Security Council. The Secretary-General has issued regular reports on the issue² and the mandates of peacekeeping operations have included provisions dealing with civilian protection. This is expressed usually as being mandated to 'protect civilians under imminent

¹ See S Wills *Protecting Civilian – The Obligations of Peacekeepers* (OUP 2009) and V Holt and G Taylor with M Kelly, 'Protecting Civilians in the Context of UN Peacekeeping Operations Successes, Setbacks and Remaining Challenges,' Independent study jointly commissioned by the Department of Peacekeeping Operations and the Office for the Coordination of Humanitarian Affairs (United Nations 2009). See also Report of the Secretary-General on the Protection of Civilians in Armed Conflict (S/2010/579) United Nations Security Council (11 November 2010).

² UNSC resolutions on the protection of civilians include S/RES/1267 (15 October 1999) S/RES/1296 (19 April 2000), S/RES/1674 (28 April 2006) and S/RES/1738 (23 December 2006). The President of the Security Council has issued statements on the protection of civilians on 12 February 1999 (S/PRST/1999/6); 15 March 2002 (S/PRST/2002/6); 20 December 2002 (S/PRST/2002/41); 15 December 2003 (S/PRST/2003/27); 14 December 2004 (S/PRST/2004/46); 21 June 2005 (S/PRST/2005/25) and 14 January 2009 (S/PRST/2009/1). The Secretary-General has submitted periodic reports on the protection of civilians, on 8 September 1999 (S/1999/957); 31 March 2001 (S/2001/331); 26 November 2002 (S/2002/1300); 28 May 2004 (S/2004/431); 28 November 2005 (S/2005/740), 28 October 2007 (S/2007/643), 29 May 2009 (S/2009/277) and 28 September 2010 (S/2010/498, on women, peace and security).

threat of physical danger'.³ Any failure to fulfill this role undermines the purpose of the peace operation and the credibility of the UN as a whole.⁴

UNIFIL presents an interesting case study in regard to the protection of civilians. Throughout its existence it has been criticized for being ineffective and risk averse.⁵ The original mandate in 1978 did not refer to the protection of civilians, although it could be argued that such a responsibility is implicit in any peacekeeping mandate.⁶ When Israel invaded Lebanon in 1982, this rendered UNIFIL redundant. It was never envisaged that the Force would find itself alongside non-Lebanese forces within UNIFIL's area of operations. In the circumstances, UN officials worked hard to justify the continued presence of UNIFIL in such an adverse situation. Privately, others thought UNIFIL should withdraw and not compromise its neutrality.⁷

After the 1982 Israeli invasion, with no 'mandate or firepower to do more, UNIFIL found itself in the unenviable position of watching the rockets and shells fire back and forth overhead, while on occasion falling victim to direct hits itself'.⁸ This required a radical adjustment of the UNIFIL concept of operations when its functions were primarily limited to humanitarian assistance. The real shame is that the Security Council did nothing to change this and that UN forces were sidelined to a role as witnesses and protestors to violations of international humanitarian law. The peacekeepers focused their efforts on the delivery of humanitarian aid to the local population and reporting violations of the ceasefire between the parties.⁹ While this provided some benefit to the civilian population, it did not justify the continued existence of such a large peacekeeping force. Nor could it be said to constitute a mandate to protect civilians.

In the summer of 2006, UNIFIL faced its most serious challenge since the 1982 Israeli invasion when serious fighting broke out between the Hizbollah militia and Israel. Israeli action in south Lebanon caused a large-scale humanitarian crisis to which the UN and the European Union were unable to respond in

³ UN missions where this terminology was adopted include UNAMSIL (where it was expressed for the first time); MONUC; UNMIL; ONUB; MINUSTAH; UNOCI; UNMIS; UNIFIL; UNAMID; and MINURCAT. The UN Security Council also used similar language when approving missions approved under lead nations.

⁴ According to the Brahimi Report, 'No failure did more to damage the standing and credibility of United Nations peacekeeping in the 1990s than its failure to distinguish between victim and aggressor.' A/55/305-S/2000/809 (21 August 2000) ix.

⁵ S Hecker, 'UNIFIL's Strategy of Risk Aversion' The Washington Institute Policy Watch No 463 (24 May 2000) 463; M Norell, 'Realities of the UN in Lebanon' The Washington Institute Policy Watch No 1466 (27 January 2009) 1466. N Nachmias, 'UNIFIL: When Peace Is Non-Existent, Peacekeeping is Impossible' (1999) 6 *Intl Peacekeeping* 95–112.

⁶ SC Res 425 (19 March 1978).

⁷ S Power, *Chasing the Flame – Sergio de Mello and the Fight to Save the World* (Penguin Books 2009) 46–47.

⁸ Human Rights Watch, *Civilian Pawns – Laws of War Violations and the Use of Weapons on the Israeli-Lebanon Border* (Human Rights Watch 1996) 35.

⁹ K Makdisi and others, 'UNIFIL II: Emerging and Evolving Engagement in Lebanon and the Middle East' EUROMESCO Paper 76 (January 2009) 5.

an effective way. The downsized UNIFIL force was no match for Hizbollah or the Israeli Defense Forces.¹⁰ UN Security Council Resolution 1701 on the situation in Lebanon was co-drafted by the United States and France and was, given the seriousness of the situation, long overdue when eventually adopted.¹¹ According to Resolution 1701, the Lebanese army was to play a vital role in deploying alongside UNIFIL. Although the United States had sought a more robust Chapter VII mandate, the Lebanese Government, fearing internal dissent, insisted on a more restrictive mandate but with an enlarged force. It was also opposed to a NATO, EU or similar multi-national operation outside the more traditional command framework of the UN. The Prime Minister of Israel, Olmert, was reported to have stated that Israel required 'real soldiers and not pensioners'.¹² Among the significant provisions in Resolution 1701 is Operative paragraph 12. This authorized a newly constituted UNIFIL (UNIFIL II¹³) to

take all necessary action in areas of deployment and as it deems within its capabilities, to ensure that its area of operations is not utilized for hostile activities of any kind, to resist attempts by forceful means to prevent it from discharging its duties under the mandate and, without prejudice to the responsibility of the government of Lebanon, *to protect civilians under imminent threat of physical violence*.¹⁴

By then the scale of the disaster for the Lebanese population was evident. UN estimates put the number of Lebanese killed at around 1,200 with over 4,000 injured as a result of the conflict.¹⁵ The cessation of hostilities triggered a massive and speedy return of internally displaced persons and refugees.¹⁶ The cost to Israel in terms of those killed or injured was also high, as was the economic and social cost to the general population.¹⁷

¹⁰ In June 2006, UNIFIL comprised 1990 troops, UN Doc S/2006/560 (21 July 2006) para 37.

¹¹ UNSC Res 1701 (11 August 2006).

¹² A Mattelaer, 'Europe Rediscovered Peacekeeping? Political and Military Logics in the 2006 UNIFIL Enhancement' EGMONT, Royal Institute for International Relations, (October 2009) 10.

¹³ The term UNIFIL II is used to distinguish the reconstituted force set up as a consequence of resolution 1701(2006) from that established in 1978. A unique aspect of the UNIFIL II force is the establishment of a Maritime Task Force. The focus of this paper is on the role of troops deployed as part of the peacekeeping force.

¹⁴ Emphasis added.

¹⁵ UN Doc S/2006/670 (18 August 2006) paras 42 and 46. Many of these victims were children. The United Nations Office for the Coordination of Humanitarian Affairs (OCHA) estimated that one million Lebanese were displaced with some 735,000 seeking shelter within Lebanon and 230,000 outside.

¹⁶ *ibid*.

¹⁷ One hundred and seventy Israelis died, including 52 civilians killed by rocket fire. Between 300,000 and 500,000 civilians were forced to flee or remain in shelters. In addition to large numbers of people treated for shock and anxiety, around 600 were injured. UN Doc S/2006/670 (18 August 2006) para 46.

The changed situation in Lebanon presented a serious dilemma for the UN. Intervention in such a conflict was fraught with pitfalls. Any UN peacekeeping operation can only succeed if given the mandate and the means to do so. There was much talk of an aggressive or robust mandate for the proposed force, but it is difficult not to conclude that many commentators did not appreciate the complexity of the issues.

Deciding on the appropriate provisions of the UN Charter to authorize a peace operation is an important factor in determining the robustness of the overall mission. Traditional peacekeeping operations are approved under Chapter VI (Peaceful Settlement of Disputes) of the UN Charter and rely on the co-operation of the parties to the conflict.¹⁸ The original UNIFIL mission was such an operation. In recent years, the Security Council has approved operations under Chapter VII (Enforcement Operations) and the mandate and nature of such missions is substantially different from those approved under Chapter VI. Initially, there were mixed signals from the Israeli Government about the plan to deploy another international force, but later they made it clear that the preferred choice was a reconfigured UNIFIL with a 'robust' mandate under Chapter VII. Lebanon, as the host state, had the final say and did not support such a change in the mandate. Apart from the dangers of becoming embroiled in conflict, Chapter VII mandates can create expectations that are seldom realized.

A ceasefire agreement was essential in the first instance but initially both Hizbollah and Israel seemed intent on continuing fighting. Without the agreement of the parties there was no prospect of a UN force deploying. As UNIFIL discovered to its cost in 1978, even 'agreement' by leaders does not always translate into cooperation on the ground. The situation in Lebanon could not be classified as a simple inter-state conflict. Lebanon had not attacked Israel, and this fragile democracy had already demonstrated that it did not have the capacity to restrain or disarm the Hizbollah militia. UN Resolution 1559 (2004) called for the disbanding and disarmament of all Lebanese and non-Lebanese militias (a clear reference to Hizbollah).¹⁹ It also supported the extension of the control of the Government of Lebanon over all Lebanese territory. The post Resolution 1701 enlarged UNIFIL II could not ignore the terms of the resolution but it presented an almost impossible challenge.

In 1978, the Secretary-General identified a number of conditions that needed to be met for the Force to be effective, including the full backing of the Security Council, the full cooperation of all the parties concerned, and the ability to function as an integrated and efficient military unit.²⁰ Later, the then Under Secretary-General for peacekeeping operations, Brian Urquhart, expanded upon this and stated that successful peacekeeping depends, *inter alia*, on a

¹⁸ See B Simma (ed), *The Charter of the United Nations: A Commentary* (2nd edn OUP 2002) 648–700; N White, *Keeping the Peace* (2nd edn Manchester University Press 1997) 207–284; United Nations, *The Blue Helmets – A Review of United Nations Peacekeeping* (3rd edn United Nations 1996) 3–9.

¹⁹ UNSC Res 1701 (11 August 2006) UN Doc S/RES/1701.

²⁰ UNSC Doc S/12611 (19 March 1978) para 3.

sound political base, a well-defined mandate and objectives, and the cooperation of the parties concerned.²¹ The requirement of a well-defined mandate and objectives was a somewhat glaring omission from the Secretary-General's otherwise pragmatic report.²² In the discussions in relation to the international force for Lebanon in 2006, a number of these issues did not seem to be given due consideration, especially in the early stages of the crisis.²³ As with all such crises, the urgency to look for what seemed like a 'quick fix' solution became the overriding consideration. By the end of 2010, the Secretary-General reported that the situation appeared to be deteriorating, and notwithstanding the relative stability in the south, it remained volatile.²⁴

This article examines the extent to which UNIFIL protected the Lebanese civilian population. It focuses on the overall performance of the force and the crises created by the 1982 invasion and the post 2006 situation in south Lebanon. The argument being that the UNIFIL II force has yet to overcome some serious obstacles to implementing the mandate and this in turn is linked to broader national and regional political and security issues that need immediate attention in order to facilitate a resolution of the problems confronting Lebanon as a whole.²⁵ It argues, furthermore, that the mandate today, though expanded in some important respects, is fundamentally the same as that of 1978.

A. Background to deployment of UN forces in 1978

Among the feared consequences of Israeli action in south Lebanon during 2006 was that it could ignite long simmering religious and political tensions. Civil war, not unlike that which broke out in April 1975 between Christian factions and leftist Muslim Lebanese supported by the Palestinian Liberation Organization (PLO), remains a very real prospect. This led to the collapse of the Lebanese administration, the division of the security forces and Syrian intervention to protect the Christian population in June 1976. The Riyadh peace plan of October 1976 saw the deployment of an Arab League Peacekeeping Force (the Arab Deterrent Force) to end hostilities and keep the peace. The other

²¹ B Urquhart, 'On UN Peacekeeping' *New York Times* (19 December 1983) 19.

²² The Report of the Panel on UN Peace Operations (Brahimi Report) UN Doc A/55/305-S/2000/809 (21 August 2000) recommended that UN peacekeepers have, *inter alia*, 'clear, credible and achievable mandates'.

²³ 'Annan, Rice intensify diplomatic efforts to end conflict in Lebanon' *CBC News* (24 July 2006); N Wadhams, 'UN Draft Seeks Full Halt to Fighting' *Associated Press* (5 August 2006); M Crutsinger, 'Blair, Annan call for troops in Israel' *Associated Press* (17 July 2006); P Baker and R Wright, 'Push made for Peacekeeping Force to go into Lebanon' *Washington Post* (Washington, 18 July 2006), A15; E Sciolio and S Erlanger, 'No Volunteers for Lebanon Force' *New York Times* (New York, 24 July 2006); P Cullen, 'Lebanon: anatomy of a crisis' *The Irish Times* (Dublin, 5 August 2006) 11 and F Biedermann, 'Lebanese troops offer receives cautious welcome' *Financial Times* (London, 9 August 2006) 3.

²⁴ UN Doc S/2010/565 (1 November 2010) paras 58–60.

²⁵ *ibid* (1 November 2010).

Arab forces soon began to withdraw ultimately leaving some 25,000 Syrian forces in Lebanon the last of which were not withdrawn until April 2005.²⁶ This posed a serious threat to Israel. The civil war proved to be a crucial event in the forging of an Israeli-Christian Lebanese alliance.²⁷

The establishment of the UNIFIL in 1978 was prompted by an Israeli invasion after a group of Palestinian guerrillas from bases in south Lebanon attacked a civilian bus in Israel killing 37 Israelis and injuring another 76. Four days later, the Security Council adopted Resolutions 425 and 426 establishing UNIFIL.²⁸ Then, as in 2006, there was a lack of political consensus within the Security Council. The mandate ultimately agreed did not reflect the problems associated with the presence at the time of the PLO in southern Lebanon and the Israeli determination to occupy part of this by proxy.²⁹

The debate on the adoption of Resolution 425 ignored the Palestinian issue and the need for a comprehensive settlement of the overall Middle East question.³⁰ This was one reason why many members wavered in their express support for the Force.³¹ Nonetheless, something needed to be done and the establishment of a peacekeeping force with ambiguous and unrealistic objectives and terms of reference was agreed to hastily in order to solve the immediate crisis.³² It is hardly surprising, therefore, that UNIFIL encountered major difficulties in implementing its mandate.

²⁶ On 2 September 2004, the Security Council adopted resolution 1559 calling for the withdrawal of all foreign forces from Lebanon.

²⁷ B Morris, *Righteous Victims: A History of the Zionist-Arab Conflict, 1881-2000* (Vintage 2001) 502.

²⁸ SC Res 425 (19 March 1978) and SC Res 426 (19 March 1978). Resolution 425 defined the UNIFIL mandate in the following terms: confirming the withdrawal of Israeli forces; Restoring international peace and security; Assisting the government of Lebanon in ensuring the return of its effective authority in the area. R Murphy, 'The Political and Diplomatic Background to the Establishment of UNIFIL in Lebanon and the UNITAF and UNOSOM Missions in Somalia' (2002) 22 *J Confl Stud* 26-56.

²⁹ B Urquhart, *A Life in Peace and War* (Weidenfeld and Nicolson 1987) 289.

³⁰ UNSCOR, 33rd Year, 2074 Mtg (19 March 1978). Early discussions on the situation in the Middle East did refer to the need for a resolution of the Palestinian question SCOR 33rd Year, 2072 and 2073 Mtgs (18 and 19 March 1978).

³¹ Personal interview, Lt Gen E Erskine, former Force Commander UNIFIL (July 1986, Dublin). In the end, the resolution establishing UNIFIL was adopted by a clear majority with the USSR and Czechoslovakia abstaining. China did not participate in the voting – UNSCOR 33rd Year 2074 Mtg (19 March 1978) para 41.

³² In this regard, the Secretary-General had this to say: 'when a peacekeeping operation is firmly based on a detailed agreement between the parties in conflict and they are prepared to abide by that agreement, it is relatively easy to maintain... (eg UNEF and UNDOF) ... when, however, an operation is mounted in an emergency with ambiguous or controversial objectives and terms of reference, and on assumptions which are not wholly realistic, it is likely to present far greater difficulties. This is undoubtedly the case with UNIFIL'. K Waldheim, in R Schiffer (ed), *Building the Future Order* (Collier Macmillan 1980) 45.

2. Problems with the Mandate

The proposal to establish UNIFIL was initially greeted with some degree of scepticism by states and UN officials.³³ Everything was premised on an Israeli withdrawal. How was a peacekeeping force expected to restore Lebanese Government authority to an area where it was non-existent? There was no clear policy on how UNIFIL would deal with the various armed elements or what action the Force would take if Israel did not withdraw completely. As with the 2006 situation, the urgent necessity to do something to alleviate the immediate crisis while there was some broad agreement in the Security Council meant that misgivings had to be put aside. Further prolonged discussion could have jeopardised the whole initiative.³⁴ At this stage, no consideration seems to have been given to UNIFIL performing a role in the protection of the civilian population and consequently it is not mentioned in the debates at the time.³⁵

3. Lack of an Agreed Area of Operations and Cooperation from the Parties in Lebanon

Lack of cooperation from the parties to the conflict proved to be a major obstacle that had serious repercussions for UNIFIL's freedom of movement. This was compounded by the ill defined reference to an area of operation. However, it was impossible to be more specific at the time, as discussions in the Security Council and consultations with the governments of Israel and Lebanon revealed profound disagreement on the subject.

The impediment to freedom of movement created by not defining the precise area of operation became evident when UNIFIL troops from the French contingent were prevented from deploying around key PLO strongholds.³⁶ A complicating factor was the so called 'Cairo Agreement' between the PLO and the Lebanese government that legitimised the PLO's presence in Lebanon.³⁷

³³ UNSCOR, 33rd Year, 2074 Mtg (19 March 1978); personal interview, Lt Gen E Erskine, former Force Commander UNIFIL (July 1986, Dublin); IJ Rikhye, *The Theory and Practice of Peacekeeping* (Hurst and Company 1984) 109. UNSCOR 33rd Year 2074 Mtg (19 March 1978).

³⁴ United Nations, *The Blue Helmets: A Review of United Nations Peacekeeping* (3rd edn United Nations 1996) 88–89.

³⁵ UNSCOR 33rd Year 2072, 2073 and 2074 Mtgs (18 and 19 March 1978).

³⁶ UN Doc S/12845 (13 September 1978) paras 36–38; *The Blue Helmets*, ibid at 88–89 and UN Doc S/12620/Add 4 (5 May 1978).

³⁷ The text of the Agreement is given by W Khalidi, 'Conflict and Violence in the Lebanon: Confrontation in the Middle East' (1979) 39 *Harvard Stud Intl Affairs* 185–187.

At the time, the UNIFIL Force Commander and the Lebanese Government favoured a robust response.³⁸ However, UNIFIL was not a combat or enforcement mission, and the PLO stronghold had been bypassed by the much more militarily capable Israeli Defence Forces. UNIFIL was a peacekeeping mission under a Chapter VI resolution of the Security Council and as such it relied on the co-operation of the parties concerned. Problems had to be resolved by negotiation, however unsatisfactory the outcome. It is no surprise that deployment in the area 'was not pressed'.³⁹ Although the Secretary-General reported that relations with the PLO in the area had not created major problems,⁴⁰ the agreement provided ammunition to those opposed to UNIFIL. It also gave the Israeli backed forces a pretext for denying UNIFIL freedom of movement to deploy in the area under their control.

As far as Israel was concerned, it had fulfilled its part in the implementation of Resolutions 425 and 426, which, it was claimed, did not require control of any area to be turned over to UNIFIL.⁴¹ This was a narrow and erroneous interpretation of the resolutions in question and that interpretation led to serious confrontations with the peacekeeping force. A primary task for UNIFIL under Resolution 425 was to confirm the withdrawal of Israeli forces from Lebanon. The most expedient way to achieve this and allow for UNIFIL to secure an area of operations was for the Israeli Defence Forces to hand over control to UNIFIL as they withdrew. This did not happen.

4. UNIFIL post-1982 Israeli Invasion⁴²

The 1982 Israeli invasion and subsequent occupation of south Lebanon presented UNIFIL with a number of serious challenges. Over a three-year period from 1982 to 1984, 'UNIFIL remained behind the Israeli lines, with its role limited to providing protection and humanitarian assistance to the local

³⁸ Personal interview with Lt Gen Erskine, former Force Commander UNIFIL (Dublin, July 1986). See also G Tueni, *Une guerre pour les autres* (Jean Claude Lattes 1985) 203–204 and S/12620/Add.5 (13 June 1978) para 13.

³⁹ UN Doc S/12845 (13 September 1978) para 37.

⁴⁰ UN Doc S/12929 (18 November 1978) para 18.

⁴¹ S/12840 letter dated 8 September 1978, from the representative of Israel to the Secretary-General.

⁴² See 'Israel in Lebanon' Report of the International commission to enquire into reported violations of International Law by Israel during its invasion of the Lebanon (London Ithaca Press 1983). The Commission dealt comprehensively with a wide range of matters arising from Israeli policy throughout Lebanon and concluded that Israel had violated a number of international legal principles and conventions governing the laws of war. See also Human Rights Watch, *Civilian Pawns – Laws of War Violations and the Use of Weapons on the Israeli-Lebanon Border* (Human Rights Watch 1996).

population to the extent possible'.⁴³ It was never envisaged that the Force would find itself alongside non-Lebanese forces that were occupying UNIFIL's area of operations. This made implementation of the mandate impossible. In the circumstances, UN officials used every means at their disposal to justify the continued presence of UNIFIL in such an adverse situation.⁴⁴

The protection of Lebanese civilians in the aftermath of the Israeli invasion became an issue of concern when their treatment by Israeli forces was brought to the attention of the Security Council in 1984.⁴⁵ After the Lebanese Government introduced two draft resolutions to the Security Council calling on Israel to comply with the provisions of the Fourth Geneva Convention and the regulations annexed to the Hague Convention of 1907, UNIFIL was inadvertently presented with an opportunity to play a role in ensuring Israeli observance of these Conventions.⁴⁶ While the Security Council prevaricated over what to do about the peacekeeping Force, the role of safeguarding the rights of a civilian population under occupation provided a reasonable solution to the problem in the short term. This policy was a reaction to events rather than a planned response.

Since the invasion had transformed the situation on the ground, safeguarding the civilian population provided an interim solution to the total disregard of UNIFIL's authority by Israel. UNIFIL could do little to influence the major events taking place elsewhere in the country and unless it was prepared to intervene it risked being held responsible for Israeli actions in its area.⁴⁷ Despite the predicament, UNIFIL did perform a worthwhile function in highlighting breaches of international humanitarian law. More importantly, it helped ensure compliance with fundamental principles when it appeared that they

⁴³ See UNIFIL 'Background' at <<http://www.un.org/en/peacekeeping/missions/unifil/background.shtml>> (accessed 27 April 2012).

⁴⁴ Personal interview with T Goksel, UNIFIL spokesman (Naqoura, Lebanon 1998). This was confirming a similar view expressed by Lt Gen W Callaghan, Force Commander UNIFIL at the time (Dublin, Ireland, 1986). See also the comments by Maj Gen J Konrote, former Fijian battalion and company commander UNIFIL, 'Use of force on Peace Operations' in J Howard and B Oswald (eds), *The Rule of Law in Peace Operations* (University of Melbourne 2002) 85–88 at 87.

⁴⁵ UN Doc S/16713 (24 August 1984) letter from representative of Lebanon to Council President. The Four Geneva Conventions of 1949 were ratified by Lebanon and Israel in 1951. Neither was party to the Additional 1977 Protocols.

⁴⁶ The Lebanese draft resolution called upon Israel as the Occupying Power, to respect strictly the rights of the civilian population in the area under its occupation and to comply strictly with the provisions of the Fourth Geneva Convention. The vote on the text (S/16732) was fourteen in favour, to one against (the USA), there were no abstentions. The draft resolution was not adopted due to the negative vote of the United States. See also SCOR 2552 Mtg (29 August 1984) to 2556 Mtg (4 September 1984).

⁴⁷ There were also grave risks for UNIFIL of being caught in crossfire or being deliberately targeted by parties to the conflict, see D Turns, 'Some Reflections on the Conflict in Southern Lebanon: The 'Qana Incident' and International Humanitarian Law' (2000) 5 *JCSL* 177–209.

would otherwise be disregarded. This aspect of UNIFIL's presence at the time should not be discounted.

When Israeli forces adopted what became known as an 'iron fist' policy to deter further attacks, UNIFIL's predicament worsened.⁴⁸ The policy began in February 1984 and involved, *inter alia*, the deportation of Lebanese civilians from their home villages, expulsions of local inhabitants, curfews, mass arrests, internment, the transfer of suspects and the increased destruction of homes belonging to suspected resistance fighters. In the changed situation, there was an urgent need to define the policy UNIFIL should adopt and in response the Secretary-General issued the following statement:

...a new situation has developed in southern Lebanon.... UNIFIL is now stationed in an area where active resistance against IDF [Israeli Defense Forces] is in progress, and in which the latter is engaged in active countermeasures. UNIFIL, for obvious reason, has no right to impede Lebanese acts of resistance against the Occupying force, nor does it have the mandate or the means to prevent counter measures.... It seems to me that the only course for UNIFIL is to maintain its presence and to continue within its limited means to carry out its existing functions in the area....⁴⁹

This highlighted the dilemma facing UNIFIL, as it had neither the means nor the authority to prevent resistance attacks against Israeli Forces and the subsequent countermeasures by Israel. Practical questions relating to how UNIFIL was to distinguish between Palestinian guerrillas and local resistance groups attempting to infiltrate by night were not clarified. UNIFIL was told to carry out its existing functions. Unfortunately, the Secretary-General did not elaborate upon this. The sight of UNIFIL soldiers alongside Israeli soldiers led some to complain that UNIFIL was supporting Israeli forces.⁵⁰ The policy also meant UNIFIL avoided the potentially difficult issue of which, if any, resistance groups were entitled to recognition.

Notwithstanding the policy adopted, confrontations occurred when UNIFIL denied passage through its checkpoints to unauthorized armed personnel. In one incident Irish soldiers apprehended four armed personnel.⁵¹ A UNIFIL patrol dispatched to the scene was intercepted and detained by armed elements. Other

⁴⁸ The policy was reportedly sanctioned by the Israeli Defence Minister and was likened to that used in the Gaza Strip in the early 1970s to curtail Palestinian unrest, see R Fisk, *The Times* (London, 15 February and 21 February 1985). For a more extensive account by the same author, see *Pity the Nation* (Andre Deutsch 1990) esp 243–281.

⁴⁹ UN Doc S/17093 (11 April 1985) para 24.

⁵⁰ The leader of Amal, Mr Nabbi Berri, accused UNIFIL of helping the Israelis on occasions *The Irish Times* (Dublin, 23 January 1985). Other groups made similar accusations *The Times* (London, 22 February 1985).

⁵¹ UN Doc S/17684 (16 December 1985) para 7.

Irish positions were quickly surrounded while UNIFIL reinforcements were fired on. Fire was returned and the situation was later resolved by negotiations with senior personnel from the moderate Shiite movement Amal.⁵² This demonstrated the extent to which armed elements were able to mobilise and the vulnerability of UNIFIL personnel. It could be argued that the armed elements should have been allowed complete freedom of movement. This was consistent with the Secretary-General's policy statement, but UNIFIL did have to draw the line somewhere. If it allowed unauthorized Lebanese armed elements unimpeded freedom of movement, it would have relinquished the last vestiges of authority that it possessed in the area. As it was, the policy of cooperating with Amal allowed its members considerable latitude in the area. However, this was not an ideal environment for protecting civilians and this was to deteriorate even further.

The situation worsened as Israeli forces redeployed in 1985. The French battalion in particular adopted a robust stance.⁵³ Irish UNIFIL troops also clashed with the Israelis, especially during raids on the Shiite village of Yatar.⁵⁴ UNIFIL's policy of monitoring and reporting did little to instill confidence among the population who accused it of being 'both the observer and protector of the [Israeli] invasion army'.⁵⁵ UNIFIL policy appeared to be accomplishing little and it led to allegations of collusion.⁵⁶ This was despite the fact that many UNIFIL personnel sent to monitor Israeli operations often placed themselves in personal danger in attempting to mitigate the excessive behaviour of the Israeli forces and their allies. UNIFIL was being placed in a 'no-win' situation. It was not surprising that soon after the 'iron fist' policy began, a serious threat was made against UNIFIL by Hizbollah.⁵⁷ In such circumstances, it was difficult to determine whether UNIFIL could justify remaining in south Lebanon. Its function was unclear, while its overall predicament was untenable. In fact, during

⁵² AR Norton, *Amal and the Shi'a: Struggle for the Soul of Lebanon* (University of Texas Press 1987) and Nachmias (n 5) 95–97.

⁵³ In one incident they became involved in a fist fight with Israeli forces when trying to prevent the latter blowing up houses. They were also reported to have laid the French Tricolour at the entrance to another village and threatened to shoot the first Israeli to drive over it. The Israeli forces were reported to have retreated. R Fisk, *The Times* (London, 28 February 1985).

⁵⁴ In the first joint Israeli/'South Lebanon Army' operation, during which the latter forces played the leading role, an attempt to forcefully evict the Irish troops from their post there was successfully resisted. See R Fisk, *The Irish Times* (Dublin, 8 March 1985). The report was confirmed by Comdt B McKevitt who was serving with 56 Infantry Battalion at the time. The Israelis used the South Lebanese Army to extend the 'Security zone' and push the Irish back from certain posts in their way. The Irish refused to move from posts, such as 'Charlies Mountain' (Al Yatun) despite Israeli demands that they do so, *The Irish Times* (Dublin, 21, 22 March 1985 and 1 April 1985) and *The Guardian* (London, 21 March 1985).

⁵⁵ Personal interview, senior Irish officer who served with UNIFIL at the time (Dublin, June 1998).

⁵⁶ R Fisk, *The Times* (London, 22 February 1985).

⁵⁷ *ibid.*

1985 and 1986 the reports to the Security Council were very pessimistic and there seemed little hope of any improvement.

The anomalous position of UNIFIL was evident during a serious incident in February 1986 when Israel and its surrogate forces in the so called 'South Lebanon Army' were ambushed near the village of Kunin in the Israeli controlled 'security zone'.⁵⁸ Two Israeli soldiers were abducted and this led to a large Israeli force carrying out a series of cordon and search operations during which UNIFIL monitored the situation as closely as possible and tried to prevent acts of violence against the local population.⁵⁹ In so doing they put themselves at risk, especially in dealing with the less disciplined 'South Lebanon Army'. The Secretary-General's report of the incident states that UNIFIL personnel

observed some cases of what appeared to be unacceptable treatment of prisoners by IDF/SLA [Israeli Defence Force/South Lebanon Army] personnel. The UNIFIL reports of the incidents were transmitted immediately to the Israeli authorities and their comments invited.⁶⁰

The operation led to a number of complaints being made by local civilians regarding the treatment they received.⁶¹ The most serious of these was that the Israeli forces attempted to expel all the locals from the village of Kunin in retaliation and that Israeli actions violated a number of provisions of the Fourth Geneva Convention.

While Israel's anger at what took place is understandable, it did not justify the response.⁶² The attempt to expel all the Shiite residents of Kunin could not be

⁵⁸ UN Doc S/17965 (9 April 1986) para 21.

⁵⁹ UNIFIL reported that six persons, including one Israeli soldier, were killed in the operation, 10 more wounded and about 150 others were taken prisoner by the Israeli 'South Lebanon Army' forces. Eighty of the detained were released soon afterwards, however, the other sixty were held indefinitely.

⁶⁰ UN Doc S/17965 (9 April 1986). Israel claimed that its forces had received clear instructions on how to behave towards the local civilian population before and during the operation, and that follow up investigations of all Israeli army units involved had found no deviation from these instructions.

⁶¹ Personal interview with senior Lebanese Red Cross official (19 September 1989) and local civilians from villages affected September/October 1989. The Secretary-General's report states that following the incident an Israeli force of about three mechanized battalions accompanied by members of SLA and supported by tanks and helicopter troop carriers and gunships carried out a series of cordon and search operations in the UNFIL area from 17 to 22 February. UN Doc S/17965 (9 April 1986) para 21.

⁶² Those detained were blindfolded and had their hands tied behind their backs. Many of the suspects were beaten (personal interviews with UNIFIL officers who witnessed such events at the time). For an account of Israeli Defence Forces actions in Lebanon see D Yermiya, *My War Diary – Israel in Lebanon* (Pluto Press 1983). The pamphlet, *Operation Iron Fist – Israeli Policy in Lebanon*, published by the League of Arab States (May 1985), gives a somewhat biased chronology of events.

justified on military or security grounds.⁶³ The large numbers of civilians detained indicated the follow up operation was a retaliation that was intended to coerce information from those detained. The ambush afforded the opportunity to implement the proposed 'sanitised zone' policy in Kunin. There was a similar threat to other villages in the UN area but UNIFIL's interventions prevented this going ahead. For this reason, the peacekeeping Force can take at least some credit for protecting the civilian population in the area.⁶⁴

Israel faced a dilemma in so far as its tactics alienated the population and meant international condemnation. Many of the Shiite villages that suffered most during this period were strongly opposed to the Palestinian presence prior to the invasion. Now their animosity switched to the Israelis. Attempts to have the 'South Lebanon Army' adopt a more prominent role only made matters worse. Attacks on Israeli soldiers increased and in March, 12 Israeli soldiers were killed in one incident.⁶⁵ Israel's response was predictable. A major operation was launched against a number of villages that left at least 32 dead. Throughout 1985, numerous cordon and search operations were carried out and Israeli forces frequently shelled villages, particularly in the Irish area. During this period, Israel continued its efforts to impose the 'South Lebanon Army' on the people of the south, while dangerous confrontations ensued when UNIFIL tried to curtail the activities of this militia.⁶⁶

The maintenance of the security zone effectively precluded UNIFIL from carrying out patrols in the battalion sectors for fear of being mistaken for resistance fighters. Many vulnerable checkpoints and observation posts were closed and consequently the effectiveness of the Force was diminished. The abduction of local resistance leaders from the UNIFIL area in December 1988 was particularly serious. It seemed to some that the Irish had colluded in the affair and the next day a checkpoint was overrun and three Irish soldiers kidnapped by armed elements. With the help of Amal, the soldiers were found alive

⁶³ Article 49 of the Geneva Convention IV states in para 2 that '... the Occupying Power may undertake total or partial evacuation if the security of the population or imperative military reasons so demand....' Neither justification was applicable in this instance, see J Pictet, *Commentary – Geneva Convention IV* (ICRC 1952) 277–283.

⁶⁴ Israeli tactics led to widespread and unnecessary damage being caused to the property and personal belongings of villagers, contrary to Article 53 of the Fourth Geneva Convention, UN Doc S/17965 (9 April 1986) paras 13–15 and interviews with local inhabitants living in the areas searched at the time, July to October 1989. When the Israeli troops were assisted or followed by the *de facto forces* the damage caused to property was much worse and the operation frequently turned into one of terrorising and ill treating villagers. The 'South Lebanon Army' also engaged in looting, and harassment of UNIFIL troops. The Israeli troops made no attempt to restrain them from the excesses despite their responsibility under Article 29 and Section III of the Geneva Convention IV, respectively.

⁶⁵ *The Irish Times* (Dublin, 11 March 1985).

⁶⁶ UN Doc S/17684 (16 December 1985) paras 2–7. The Norwegian battalion had particular difficulty with these groups when restrictions were imposed on the movement of UNIFIL personnel.

and well.⁶⁷ The whole affair highlighted a number of weaknesses in the UNIFIL and Irish performance in Lebanon.⁶⁸ Why were the Israelis able to enter the area in daylight and abduct civilians? What was UNIFIL's function if it could not, or would not, prevent such abductions? In March 1989, the resistance movement exacted its revenge for the perceived collusion when three Irish soldiers were targeted and killed by a land mine.⁶⁹

The most serious aspect for UNIFIL as a whole was its reliance upon the Amal movement to resolve the affair and the fact that the level of cooperation amounted to an unofficial alliance. Amal was the closest thing to some form of authority in the south. The movement also had considerable support in the area and was pro-UNIFIL. Nonetheless, co-operation with Amal also risked compromising UNIFIL's impartiality. This was one of the most serious threats to UNIFIL's delicately balanced impartiality and general acceptability in the area.

5. Operation 'Grapes of Wrath' and Qana Incident 1996

In the 1990s, after a period of intense fighting and a major incursion by Israel into Lebanon in 1993 ('Operation Accountability') which caused major damage to Lebanon's civilian infrastructure and displaced much of the population of the south, Hizbollah and Israel concluded an 'agreement' that both sides would refrain from targeting civilians.⁷⁰ This understanding had the potential to contribute to the protection of civilians and restrain the parties.⁷¹ However, it was fragile and politically sensitive. When this agreement broke down in 1996, it led to a serious escalation in hostilities. The Israeli forces launched operation 'Grapes of Wrath' in mid April which involved, among other things, heavy shelling of southern Lebanon.⁷² This was intended to drive out the civilian population and put pressure on the Lebanese and Syrian governments to curb the activities of Hizbollah. During the period January to July 1996, over 120 civilians were killed by Israeli fire and 500 wounded in the UNIFIL area of operations. Most of these were killed on 18 April when a UN compound at Qana

⁶⁷ See Secretary-General's report UN Doc S/20416 (24 January 1989). An extremist group intended to take the soldiers to Beirut.

⁶⁸ It was even said that 'Irish soldiers now see their prime task as staying alive until the end of their period of duty'. This is hardly surprising given the relatively high number of Irish casualties in Lebanon to date and the lack of co-operation from the parties to the conflict.

⁶⁹ This conclusion is based on conversations with local resistance fighters during 1989, see also H McDonald, *IRISHBATT – The Story of Ireland's Blue Berets in the Lebanon* (Gill and Macmillan 1993) 116–117.

⁷⁰ See *US brokered cease-fire ends Israeli Strikes on Lebanon* (Facts on File 1993) 570.

⁷¹ Report of the Secretary-General of the United Nations Interim Force in Lebanon, (for the period from 22 January 1996 to 20 July 1996) UN Doc S/1996/575 para 43.

⁷² 'Operation Grapes of Wrath' *Ynet News* (18 March 2006); Amnesty International, 'Israel/Lebanon: Unlawful Killings During Operation Grapes of Wrath' (23 July 1996) and Human Rights Watch 'Grapes of Wrath – the Civilian Victims' (1 September 1997).

was fired on by Israeli forces responding to Hizbollah rocket attacks.⁷³ The UN blamed Israel for what happened. It was suggested that the shelling was at best criminally negligent or possibly intentional.⁷⁴ Israel denied responsibility and claimed the shelling of the UN compound was a mistake. It held Hizbollah responsible for using civilians as human shields and provoking the Israeli forces to fire on the compound.⁷⁵

Should the UN post commander have notified the Israelis of the presence of the civilians in the UN compound?⁷⁶ Under Article 8 of the Statute of the International Criminal Court, intentionally directing attacks against peace-keeping personnel or installations is a war crime.⁷⁷ A UN post is a protected object under international humanitarian law and any deliberate attack on such a location is a war crime regardless of the presence of civilians. According to the UK *Manual of the Law of Armed Conflict*, where a UN force 'is not engaged as a party to the conflict, its personnel and equipment would not constitute a military objective and attacks on them will therefore be unlawful'.⁷⁸ Although the presence of Hizbollah militants taking a direct part in hostilities compromised the status of the post, it did not justify the indiscriminate and disproportionate use of force.⁷⁹ Furthermore, it was common

⁷³ Report of the Secretary-General of the United Nations Interim Force in Lebanon, (for the period from 22 January 1996 to 20 July 1996) UN Doc S/1996/575 para 18; Military Advisers report to the Security Council (7 May 1996) UN Doc S/1996/337; M Reiseman 'The Lessons of Qana' (1997) 22 *Yale J Intl L* 381.

⁷⁴ Letter dated 7 May from the Secretary-General Addressed to the President of the Security Council, S/1996/337 dated 7 May 1996 and Annex Report dated 1 May 1996 of the Secretary-General's Military Adviser concerning the shelling of the United Nations compound at Qana on 18 April 1996. The Secretary-General's letter noted that the UN investigation 'sought to establish, to the extent possible, the facts surrounding those events. General van Kappen had extensive discussions with UNIFIL commanders, Lebanese and Israeli authorities, and eyewitnesses. As indicated in the report, while the possibility cannot be ruled out completely, the pattern of impacts in the Qana area makes it unlikely that the shelling of the UN compound was the result of technical and/or procedural errors. For their part, the Israel Defence Forces maintain that the incident was due to a sequence of operational mistakes and technical failures, compounded by chance'.

⁷⁵ Turns (n 46) 188; Letter dated 7 May from the Secretary-General Addressed to the President of the Security Council, S/1996/337 dated 7 May 1996.

⁷⁶ Turns (n 46) 209.

⁷⁷ Art 8(2)(b)(iii) and art 8(2)(e)(iii) ICC Statute, see K Doermann, *Elements of War Crimes under the Rome Statute of the International Criminal Court* (CUP 2002) 153–160 and 452–457. The Geneva Conventions and Additional Protocols do not specifically address the protection of peacekeeping missions, the 1994 Convention on the Safety of United Nations and Associated Personnel prohibits attacks against UN and associated personnel, see A Roberts and R Guelff, *Documents on the Laws of War* (3rd edn OUP 2000) 623.

⁷⁸ UK Ministry of Defence, *The Manual of the Law of Armed Conflict* (OUP 2004) para 14.15.

⁷⁹ M Reiseman, 'The Lessons of Qana' (1997) 22 *Yale J Intl L* 381 at 395. See also arts 51 and 57 of Protocol Additional to the Geneva Conventions of 12 August 1949, and relating to the Protection of Victims of International Armed Conflicts (Protocol I) 8

practice for local civilians to seek protection in UN compounds and UN personnel readily shared their bunkers in this way. However, the incident captures the impotence of UNIFIL and the limited protection it could offer to the local population. In reality, UNIFIL was hard pressed to protect itself let alone the civilian population from all the factions operating in Lebanon alongside or against the Israeli forces.

6. UN Deployment in Lebanon 2006 and Resolution 1701

In the summer of 2006, the conflict between Hizbollah and Israel 'radically changed' the context in which UNIFIL operated.⁸⁰ The leaders of the G8 industrial nations and UN Secretary General Kofi Annan were quick to call for the swift deployment of international troops in southern Lebanon to end the escalating violence.⁸¹ It seemed to have been forgotten initially that there was already a UN peacekeeping force deployed in south Lebanon and that it had been there since 1978.

Resolution 1701 contains a number of important provisions, and similar to Resolution 425(1978), was predicated on the cooperation of all parties. Operative paragraph 8 calls for Israel and Lebanon to support a permanent ceasefire and a range of security arrangements. Paragraph 11 reflects the Security Council decision to authorize an increase in the strength of UNIFIL from 2000 to a maximum of 15,000 troops, and provides that the force shall (in addition to carrying out its mandate under resolutions 425 and 426 (1978)):

- (a) Monitor the cessation of hostilities;
- (b) Accompany and support the Lebanese armed forces as they deploy throughout the South, including along the Blue Line, as Israel withdraws its armed forces from Lebanon;
- (c) Coordinate its activities with the Government of Lebanon and the Government of Israel;
- (d) Extend its assistance to help ensure humanitarian access to civilian populations and the voluntary and safe return of displaced persons;

June 1977 (<http://www.icrc.org/ihl.nsf/FULL/475?OpenDocument>) (accessed 27 April 2012) and art 25 of the Convention (IV) respecting the Laws and Customs of War on Land and its annex: Regulations concerning the Laws and Customs of War on Land (The Hague 18 October 1907) (<http://www.icrc.org/ihl.nsf/FULL/195?OpenDocument>) (accessed 27 April 2012). In recent years, the Rome Statute of the International Criminal Court expressly prohibits attacks on civilians and UN personnel and installations—see art 8 (b)(i)–(iii).

⁸⁰ UN Doc S/2006/560 (21 July 2006) para 41.

⁸¹ *CNN report* (17 July 2006); *ABC News International* (20 August 2006). M Crutsinger, 'Blair, Annan call for troops in Israel' *Associated Press* (17 July 2006); P Baker and R Wight, 'Push made for Peacekeeping Force to go into Lebanon' *Washington Post* (Washington, 18 July 2006) A15.

- (e) Assist the Lebanese armed forces in taking steps towards the establishment of the demilitarized zone between the Blue Line and the Litani river;
- (f) Assist the Government of Lebanon, at its request, to secure its borders and points of entry.

Operative paragraph 12 authorizes UNIFIL to take all necessary action in areas of deployment as it deems within its capabilities, to ensure that its area of operations is not utilized for hostile activities of any kind and without prejudice to the responsibility of the Government of Lebanon, to protect civilians under imminent threat of physical violence. Despite the fact that the mandate was not adopted under Chapter VII, the final pre-ambular paragraph contains the following clause: 'determining that the situation in Lebanon constitutes a threat to international peace and security'. Such language is usually associated with a Chapter VII mandate, but this was not invoked in this case. In this way, UNIFIL II can be described as something akin to a 'Chapter VI and a half mission' ie in between Chapters VI and VII.⁸² This reflects the context in which the mandate was adopted. Israel, with the support of the United States, had proposed a Chapter VII mandate but this had not met with the approval of Lebanon.⁸³ The compromise agreed created a reconfigured traditional peacekeeping operation with some of the characteristics of a more robust Chapter VII mission. The command and control framework was also different and inconsistent with the regular command structure at the Department of Peacekeeping Operations, whereby the political headquarters directs operational headquarters in the area of operations. The expectation of the European armies deploying was that of engaging in a robust operation. This in time led to problems when such expectations were translated into tactics and policy on the ground.

While the mandate is more clear and comprehensive than other resolutions in relation to UNIFIL in a number of respects, it was not self-evident how it would be implemented. Even the maintenance of 'full cessation of hostilities' is problematic.⁸⁴ Especially difficult is paragraph 8 which calls for security arrangements to prevent the resumption of hostilities and the creation of a demilitarized zone between the so called Blue Line between Israel and Lebanon and the Litani River.⁸⁵

At first it seemed that Israel had learned from past mistakes and that Israeli forces were eager to hand over positions to the newly constituted UN force and/

⁸² This was the term originally used to describe the legal basis for peacekeeping operations. Here it meant to convey the confused and contradictory nature of UNIFIL II.

⁸³ Personal interview, senior UN official, New York (October 2011); E Sciolio and S Erlanger, 'No Volunteers for Lebanon Force' *New York Times* (New York, 24 July 2006), P Baker and R Wight, 'Push made for Peacekeeping Force to go into Lebanon' *Washington Post* (Washington, 18 July 2006) A 15.

⁸⁴ SC Res 1701 (11 August 2006) para 2.

⁸⁵ See 'Paris Seeks Assurances Hizbollah will Disarm' *Financial Times* (London, 16 August 2006) 1.

or the Lebanese army.⁸⁶ However, an August 2006 commando raid on Hizbollah in breach of the UN ceasefire and numerous Israeli overflights by manned and unmanned aircraft were all too reminiscent of past actions.⁸⁷ Furthermore, the token reference to the protection of civilians and earlier resolutions on the Middle East that have been ignored to date did not inspire confidence.⁸⁸ UNIFIL had traditionally provided humanitarian assistance to the local population in the area of operations. While useful, this could not be described as fulfilling a protection mandate.⁸⁹

The resolution did not expressly say who should disarm Hizbollah, but the implication was that it should be the Lebanese Armed Forces, with assistance from the reconfigured UNIFIL. The 'modalities', to use UN terminology for such action, are not explained. Nor was there any disarmament, demobilisation or re-integration programme proposed. Israel had high expectations for UNIFIL in terms of disarmament of Hizbollah, however, these were never realistic. The Lebanese Government and armed forces are too weak and divided to be able to take any kind of offensive military action against Hizbollah fighters.⁹⁰ It was said that the proposed rules of engagement were 'robust but not offensive'. What does this mean in practice? Can UNIFIL use force to disarm Hizbollah? The answer must be no, otherwise the UN will end up trying to do what the Israeli forces could not achieve by force. Although UNIFIL has been described as operating throughout its history between Chapter VI and VII of the UN Charter,⁹¹ at no stage did the Security Council approve a mandate under Chapter VII that would permit robust military action. Hizbollah's tenacity has given it significant status in Arab eyes⁹² and any attempt by UNIFIL to forcibly disarm the militants is not consistent with the current mandate and will backfire. French and American forces sustained serious casualties when part of the Multi-National Force deployed in the 1980s, a similar fate awaits any international force that takes on Hizbollah in south Lebanon.⁹³

In contrast to relations between the peacekeeping force and the local population in the past, initially relations between UNIFIL II and the locals

⁸⁶ F Biedermann and H Morris, 'Israeli Handover Set to Start Tomorrow' *Financial Times* (London, 16 August 2006) 2.

⁸⁷ Report of the Secretary-General on the Implementation of Security Council resolution 1701 (2006) UN Doc S/2007/392 (28 June 2007) para 14. N Ladki, 'Israeli Raid in Lebanon Strains Truce' *Reuters* (20 August 2006).

⁸⁸ SC Res 242 (22 November 1967) and SC Res 338 (22 October 1973).

⁸⁹ UN Doc S/2006/560 (21 July 2006) paras 34 and 42.

⁹⁰ See J Solomon, 'Rebuilding Lebanon's Military is Critical to Defusing Hizbollah' *The Wall Street Journal* (New York, 9 August 2006) 1.

⁹¹ Maj Gen J Konrote, former Fijian battalion and company commander UNIFIL, 'Use of Force on Peace Operations' in J Howard and B Oswald (eds), *The Rule of Law in Peace Operations* (University of Melbourne 2002) 85–88 at 87.

⁹² W Wallis, 'Hizbollah's Tenacity Wins it Mythic Status in Arab Eyes' *Financial Times* (London, 9 August 2006) 3.

⁹³ See generally, R Thakur, *International Peacekeeping in Lebanon* (Boulder and London Westview 1987).

were strained. The Spanish and French contingents, in particular, were reputed to be overtly militaristic in approach and disrespectful of the local population.⁹⁴ While peacekeeping is not a popularity contest, maintaining good relations with the local population is essential, especially when tasked with their protection. They can provide critical information on threats or other activities, without which a peacekeeping force cannot function effectively. The perceived pro-Israeli agenda of UNIFIL II did not help matters.⁹⁵ Since 2007, relations have improved with increased focus on humanitarian activities, engagement with the local population and 'quick impact projects' combined with the steady deployment of trained peacekeepers rather than battle ready soldiers.

7. UNIFIL Command and the Strategic Mission Cell

The command and control mechanism agreed upon for the proposed international force is an important factor in determining its effectiveness on the ground.⁹⁶ There are numerous precedents to examine in deciding an appropriate command structure. The UNOSOM II mission in Somalia provides some good lessons on how not to frame a command structure in the context of a hostile environment and a peace enforcement operation.⁹⁷

The problem of double allegiance is a significant consideration in all UN multi-national forces. It is accepted that contingents will consult their national governments on decisions which may not conform to defence or foreign policy directives back home. Serious problems did arise in the course of the operation

⁹⁴ Makdissi and others (n 9) 25; A Exum and G Pozez, 'United Nations Peacekeepers in Southern Lebanon: One Year After the War' The Washington Institute Policy Watch No 1272 (16 August 2007).

⁹⁵ Caused by public statements in support of Israel, see for example the statements in the German parliament in support of Israel, Beteiligung bewaffneter deutscher Streitkräfte an der United Nations Interim Force in Lebanon (UNIFIL) auf Grundlage der Resolution 1701 (2006) des Sicherheitsrates der Vereinten Nationen vom 11. August 2006, Antrag der Bundesregierung; Deutscher Bundestag Drucksache 16/2572 (13 September 2006) and the much later remarks by German Chancellor Merkel addressing the Knesset in Jerusalem emphasising the need to protect Israel, Speech by Federal Chancellor Angela Merkel to the Knesset in Jerusalem on 18 March 2008 available at: <http://archiv.bundesregierung.de/Content/DE/Archiv16/Rede/2008/03-18-rede-merkel-vor-der-knesset.html?nn=273438> (last accessed April 2012).

⁹⁶ S Gordon, 'Icarus Rising and Falling. The Evolution of Command and Control Structures' in S Gordon and F H Toase (eds), *Aspects of Peacekeeping* (Frank Cass 2001) 19–41; R Paschall, 'Solving the Command and Control Problem' in B Benton (ed), *Soldiers for Peace: Fifty Years of United Nations Peacekeeping* (Facts on File 1996) 57.

⁹⁷ R Murphy, *Peacekeeping in Lebanon, Somalia and Kosovo* (CUP 2007) 106–147.

in the Congo (ONUC 1960–1964), when contributing states disagreed with UN policy, in particular the apparent reluctance to take stronger action to resolve the situation in Katanga.⁹⁸ Unfortunately, one of the practical lessons from UN involvement in Somalia (and the former Yugoslavia) is that the organisation ‘cannot manage complex political-military operations’.⁹⁹ The well publicised differences between the commander of the Italian contingent and the UNOSOM II force commander show how serious this problem was in Somalia.¹⁰⁰ It caused major operational difficulties on the ground and hindered the effectiveness of the Force at a critical period. Other contingents had less publicised difficulties in this regard also. As contingents are usually placed under the operational control, and not under the full command of a force commander of multinational forces, these problems will inevitably reoccur.

In theory, the concept of a multi-national force is good. In practice, it presents operational and related challenges when disparities in training, equipment, political outlook and even pay and conditions are taken into account. The number of European states contributing to UNIFIL II did facilitate operational effectiveness even though the militaristic approach of some contingents proved counter-productive. Deployment of a force comprising armies with similar training, doctrine and tactics maximises impact.¹⁰¹ A large number of contingents from different countries can be detrimental to operational effectiveness. However, this is the nature of multi-national peacekeeping under the umbrella of the UN and troop contributing states must accept such limitations at the outset. In recent years, matters have improved with the adoption of the Integrated Mission Planning Process and the United Nations Peacekeeping Operations principles and guidelines, but it still remains an imperfect process.¹⁰² Despite these doctrinal clarifications, UN doctrine remains notoriously vague on how to plan operations in substantive terms. For this reason the key European states contributing contingents relied on NATO planning doctrine. One senior officer went so far as to claim that UNIFIL II had no concept of operations (concise outline of the planned operation).¹⁰³

⁹⁸ R Higgins, *The United Nations Operation in the Congo (ONUC) 1960-1964* (Royal Institute of International Affairs 1980) Cpt 8, ‘Relations with Contributing States’ 97–124.

⁹⁹ See CA Crocker ‘The Lessons of Somalia: Not Everything Went Wrong’ (May/June 1995) 74 *Foreign Affairs* 5.

¹⁰⁰ The Secretary-General considered that the Italians were a ‘mistake’ and that as a former colonial power they pursued their own agenda, see B Boutros-Ghali *Unvanquished: A US-UN Saga* (Random House 1999) at 96.

¹⁰¹ E Christman and M Eisenstadt, ‘Making the Lebanon Ceasefire Work: Security Requirements and Implications for an International Force’ *The Washington Institute Policy Watch* No 3143 (30 August 2006).

¹⁰² United Nations Integrated Mission Planning Process: Guidelines endorsed by the Secretary-General on 13 June 2006; *United Nations Peacekeeping Operations: Principles and Guidelines* (UN Department of Peacekeeping Operations 18 January 2008).

¹⁰³ Interview, senior Irish officer (August 2010).

The command and control structures and rules of engagement were also uncertain. The UN was not equipped or prepared for the kind of operation required in south Lebanon. The Lebanese Government made it clear that it would not accept a non-UN force. This presented a dilemma for the UN and EU countries willing to contribute. France, in particular, wanted an operation that was not part of the normal UN command and control framework.¹⁰⁴ It did not get things completely its own way. The compromise reached was the creation of a strategic military cell headed by a four star general. However, it was not part of the UN chain of command and in an effort to push through its own agenda, France reduced its troop commitment to two hundred.¹⁰⁵ According to the Secretary-General, 'a military cell, dedicated to UNIFIL, drawing on the existing resources of the Military Division and augmented by officers from key troop-contributing countries, was needed to provide military guidance at the strategic level'.¹⁰⁶ The rapid deployment of UNIFIL was essential and the scope of the new tasks required additional strategic guidance and planning capacity at the Department of Peacekeeping Operations. The creation of a Maritime Task Force for the first time as part of a peacekeeping operation added to the challenges. It was not feasible to authorize a lead state as part of a coalition of the willing to undertake such a task either. Instead, a new concept was invented, the strategic mission cell. This previously untested concept was an attempt to plug the holes in planning, and command and control at UN level. In practice, it did permit the European states some degree of oversight of the mission and thereby facilitated their participation.

The UN was already overstretched and it seemed like a reasonable compromise at the time, especially taking into account the urgency of the situation.¹⁰⁷ It is no coincidence that this structure was put in place when European contributing states were participating in a UN mission with a potential combat role. It was independent from DPKO and responsible for the deployment of UNIFIL II and the implementation of the mandate. The failure of UN command and control procedures in Somalia and the former Yugoslavia was said to have contributed to the reluctance of developed nations, especially in Europe, to contribute to peacekeeping.¹⁰⁸ Those contributing to UNIFIL II, especially the French and Italians, anticipated that it could be dangerous. It is ironic that despite the supposed Chapter VI nature of the mission, heavy weapons accompanied the major European contingents. This special command and control mechanism was

¹⁰⁴ Ibid and R Hatto, 'UN Command and Control Capabilities: Lessons from UNIFIL's Strategic Military Cell' (2009) 16 *Intl Peacekeeping* 186–198 at 191.

¹⁰⁵ A Mattelaer 'Europe Rediscovered Peacekeeping? Political and Military Logics in the 2006 UNIFIL Enhancement' EGMONT, Royal Institute for International Relations (October 2009) 12.

¹⁰⁶ United Nations, Comprehensive Review of the Strategic Mission Cell – Report of the Secretary-General UN Doc A/61/883 (26 April 2007) para 2.

¹⁰⁷ *Annual Review of Global Peace Operations 2006* (Lynne Rienner 2006) x; *Annual Review of Global Peace Operations 2007* (Lynne Rienner 2007) 2, 145–174.

¹⁰⁸ Hatto (n 103) 188.

foisted on DPKO and the Secretary-General.¹⁰⁹ However, it did not command UNIFIL II and nor did it exercise operational control.¹¹⁰ It did provide strategic direction and gave confidence to contributing states that the response to crises would be swift and effective. This was never tested in practice, but it is doubtful the Cell could have overcome the divisions and inertia that characterise multi-national operations under the umbrella of the UN. Though useful as an intelligence and coordination mechanism, intelligence and UN peacekeeping create uneasy bedfellows.¹¹¹ Apart from the obvious difficulty of keeping anything secret in an organisation like the UN, it is inconsistent with UN policy and probably not in the national interest of contributing states. The Secretary-General drew attention to one of the potential pitfalls of this new structure when he stated that ‘operations with more limited scope such as UNIFIL, had to ensure that military guidance follows from and is consistent with political direction and that it incorporates force generation, logistics and material considerations’.¹¹²

The Strategic Mission Cell was terminated in June 2010.¹¹³ According to the Secretary-General, this had provided ‘dedicated military support to UNIFIL’ since 2006 and its functions were to be assumed by the Office for Military Affairs of the Department of Peacekeeping Operations. Some commentators thought this might be a model for other operations in that it improved the flow of information and strategic command.¹¹⁴ In reality, it had been perceived by other contributing states as an unjustified concession to the European states. It had created a two-tier system, one for the global North and another for the South. As UNIFIL was not a multi-dimensional operation like that of MONUC, there was even less justification for creating this additional layer of command. While UNIFIL II operated in a dangerous and volatile environment, it was no more so than that of MONUC and other missions at the time. Furthermore, the idea may have seemed good at the time, but it had little prospect of making a difference on the ground. Multi-national operations are by their very nature unwieldy and it is difficult to exercise any degree of operational control over them. None of the contributing states are willing to cede command to the UN, and in some cases it may even violate their national laws to relinquish command.¹¹⁵ The French had established a separate command cell when part of

¹⁰⁹ Interview, DPKO official (New York, 2010). See generally UN, *Authority, Command and Control in United Nations Peacekeeping Operations* (Department of Peacekeeping Operations/Department of Field Support 2008) esp 3–4.

¹¹⁰ For an explanation of terms such as ‘operational control’ see UN, *Authority, Command and Control in United Nations Peacekeeping Operations*, (2008), New York: Department of Peacekeeping Operations/Department of Field Support, esp 3–5 and R Paschall (n 95) 57.

¹¹¹ *United Nations Peacekeeping Operations – Principles and Guidelines* (UN 2008) refers to information sharing and not intelligence at 65.

¹¹² United Nations (n 105) para 22.

¹¹³ UN Doc S/2010/352 (1 July 2010) para 60.

¹¹⁴ Hatto (n 103) at 191.

¹¹⁵ R Murphy, *Peacekeeping in Lebanon, Somalia and Kosovo* (CUP 2007) 106–147.

UNIFIL in 1986 during serious confrontations with the Islamic resistance group Amal. This arrangement ended when the French withdrew, but it demonstrated the go it alone strategy adopted when in a difficult situation. Unilateral initiatives of that nature could make a peacekeeping force dysfunctional by undermining its cohesion and operational control mechanisms. If every mission created a strategic command cell it would add to the bureaucracy at UN level and would be difficult to integrate into existing DPKO structures. UN and EU missions are very different, and what works and is achievable for the EU cannot be transposed to the UN system. It also led to political resentment, much of which was justified, on behalf of states contributing large numbers to other UN missions.

Did the new cell structure coax the reluctant European powers back to UN peacekeeping? Some commentators assumed that the major European powers would only participate in UN approved missions if EU led, using Operation Artemis as a model.¹¹⁶ The Strategic Cell made UNIFIL look like an EU led multinational force under the cloak of a UN flag. It allowed each contributing state to provide officers for the cell and, with a reporting line directly to the UN's Under-Secretary General for Peacekeeping, it also allowed these states influence the strategic direction of the mission. However, it was difficult to see what all these officers would do all day and how they might resolve a crisis involving clashes of national interest. If anything, the mechanism provided more potential for conflict as each state sought to guard its own interest and justify their existence. Furthermore, senior military officers are not renowned for their humility and interpersonal skills in such situation. Clashes of egos and cultures could add to an already toxic mix of national interest versus UN policy. In the end it was not going to provide the type of structure within the UN that the EU can create for crisis management missions in Chad and elsewhere. EU and UN command and control structures are not comparable, and if given a choice most EU states would opt for the degree of autonomy that EU structures provide. The Strategic Command Cell failed to deliver across a range of issues and created the perception of inequity. It is unlikely to be adopted again. The creation of the Cell was not part of a strategy intended to enhance civilian protection. It is not possible to say if such a focus would have achieved much on the ground. However, it would have kept civilian protection high on the agenda of contributing states. Any enhanced operational efficiency was bound to help achieve the mission, including the protection of civilians. The biggest threat to civilians remained the possibility that hostilities could resume. As matters turned out, the Strategic Command Cell failed to have an impact on such protection. The last word should probably go to the Secretary-General, who in

¹¹⁶ R Gowan, 'EUFOR RD Congo, UNIFIL, and future European Support to the UN' *The EU's Africa Strategy: What are the lessons of the Congo Mission?* (Brussels Security and Defence Agenda 2007) 29–31.

typical diplomatic terms said that 'other potential means of reinforcement may exist and may be necessary to explore in future contexts'.¹¹⁷

8. Conclusion

The most striking feature of the UNIFIL II mission is its close resemblance with that of the original force established in 1978. It is ironic that this 'interim' force established in 1978 is still there and one ambiguous mandate was substituted for another in the context of discussions on how 'robust' the mandate should be. Despite its formidable capability, UNIFIL II pursued a fine line between peace-keeping and peace enforcement but conceptually remained the same as the original UNIFIL mission. The mandate was restrictive and UNIFIL's presence depended on the consent of the Lebanese Government. Internal Lebanese politics complicated the situation, but the partisan role played by the United States and some European states in the region had an adverse impact on the perception of the UN.¹¹⁸ The response to the 2006 crisis worsened this. This is not to say the organizational failures within the UN itself such as those identified by the Brahimi Report did not contribute to the difficulties, but they were just part of the problem.¹¹⁹ Nevertheless, some commentators have deemed UNIFIL II a failure.¹²⁰ Containment and deterrence are at the heart of the current mission, but a brief overview of UNIFIL's history shows that all parties to the conflict are prepared to risk confrontation with the UN when they deem it in their best interest. Reliance on the political cost of such action as a deterrent is likely to be of limited value. As with other contemporary UN operations, enhanced size and capabilities has not led to a corresponding increase in projected deterrence.¹²¹

The early mandate agreed upon for UNIFIL in 1978 was unrealistic and lent itself to different interpretations. Many elements of the overall plan for the deployment had obvious deficiencies. In this way, its success remained dependent on factors outside its control. Similar criticism may be made of the current mandate. UNIFIL II has successfully maintained a fragile peace while supporting the Lebanese Government in the area of operations. However, important aspects of the mandate remain unfulfilled.

¹¹⁷ United Nations (n 105) para 28.

¹¹⁸ Makdissi and others (n 9) 17.

¹¹⁹ Brahimi Report (n 21).

¹²⁰ Makdissi and others (n 9) 10.

¹²¹ Six Italian UN peacekeepers were injured when a bomb struck their convoy in southern Lebanon in May 2011. This was a rare attack against the UN force that coincided with rising tensions in the country, see L Sly, 'UN Peacekeepers Targeted in Lebanon', *Washington Post* (Washington, 27 May 2011). UNIFIL II was also the subject of an attack in January 2008, during a period of heightened tensions. The most serious attack was in June 2007, when six Spanish peacekeepers were killed. See Z Karam, 'Roadside bomb in Lebanon Wounds 6 UN Peacekeepers', *Associated Press* (27 May 2011).

Unfortunately, a number of multinational interventions have failed to make a long-term improvement in the crisis situation.¹²² Actions have been guided by short-term political and military expediency to the detriment of long-term strategic policies to resolve the underlying issues. The response of the United States and some European states to the 2006 crisis in particular was detrimental to the UN's credibility and perceived impartiality in the region.¹²³ In the early stages, France, Italy and Spain played lead roles in UNIFIL II. The need for coordinated political engagement from European Union states has not diminished.

It is difficult to assess the impact UNIFIL had on the civilian population of south Lebanon. Many civilians remained and UNIFIL offered support and a degree of protection. A number of contingents offered humanitarian assistance in addition to demining and disposing of unexploded ordinance. The Irish battalion provided a medical clinic and each battalion was given a modest humanitarian budget from the Irish Department of Foreign Affairs. Irish peacekeepers supported a local orphanage and individual commanders assisted with repairing schools and water holes and supporting families in need.¹²⁴ This was a microcosm of the range of humanitarian assistance provided by UNIFIL. South Lebanon is dotted with the large houses of wealthy Lebanese who live elsewhere, however, the majority of the population are poor and had no option but to remain whatever the situation. Civil war and political divisions meant that south Lebanon was largely neglected by the Lebanese Government. These marginalised civilians found a willing benefactor and protector in UNIFIL, albeit limited by the prevailing political and military reality in Lebanon.¹²⁵

Protection of civilians in south Lebanon should be distinguished from that of the Democratic Republic of Congo or Chad. While much of the population is poor and access to humanitarian assistance is important, they are not dependent on international aid and their plight cannot be compared to that of displaced persons and refugees in Chad or Darfur. A major threat to the population remains the possibility of another outbreak of hostilities between Hizbollah and Israel. UNIFIL's presence deters action by militants that might trigger an Israeli response.

The degree of control exercised by Israel before and after the 1985 redeployment did justify the UN decision to treat the Israeli forces as an Occupying Power. In granting Israel the rights and privileges of an Occupying Power, while at the same time deliberately avoiding impeding acts of resistance, the peacekeeping Force made no progress in protecting civilians, confirming the Israeli withdrawal or bringing about a cessation of hostilities. UNIFIL's role behind the Israeli lines providing some protection and humanitarian assistance

¹²² J MacKinlay and R Kent, 'A New Approach to Complex Emergencies' (1997) 4 *Intl Peacekeeping* 31–49 at 36.

¹²³ See comments by German politicians (n 94).

¹²⁴ Personal experience of author when serving with UNIFIL as a military officer in 1981/82 and 1989. He also visited UNIFIL area in 1998 and 2011.

¹²⁵ Makdisi and others (n 9) 18–19.

to the local population was untenable.¹²⁶ While the performance of humanitarian tasks as an interim measure was a worthwhile attempt to ease the plight of the local population and maintain good will towards UNIFIL, the loss of face and inability to prevent Israeli incursions damaged both credibility and morale. UNIFIL was also a victim of Israeli aggression, especially during operations such as 'Grapes of Wrath'. The situation did not justify a 6,000 strong peacekeeping Force remaining in what was effectively occupied territory, when it was unable to perform any of its original tasks laid down by the Security Council. Should UNIFIL have withdrawn? The Netherlands obviously thought so and withdrew its contingent. A UNIFIL withdrawal might have set the scene for another peacekeeping force to deploy at a later stage under a more realistic mandate in circumstances more conducive to effective peacekeeping.

To dismiss the UNIFIL presence as worthless is unduly harsh. UNIFIL gave the local population support and protection by intervening to prevent, by non-violent means, the demolition of public and private property and the ill treatment of civilians. A major achievement during the period was the ability to hinder the Israeli consolidation of its occupation of Lebanon. Some commentators were critical of the policy of treating the Israeli forces as an Occupying Power, owing to the presence of UNIFIL as the legitimate military power in its area of operation.¹²⁷ However, it was not an instrument of the Lebanese Government or a replacement for the Lebanese Army. The peacekeeping force had no option but to accept the reality of its predicament, 'without the mandate or firepower to do more, UNIFIL found itself in the unenviable position of watching the rockets and shells fire back and forth overhead, while on occasion falling victim to direct hits itself'.¹²⁸ The real shame is that the Security Council did nothing to change this, and that UN forces were sidelined to fulfill a role essentially as witnesses and protestors to violations of international humanitarian law.

Part of the initial reluctance to participation by European states in UNIFIL II reflected an appreciation that the concept of security encompasses much more than 'keeping the lid' on things and should embrace the security of the local population, disarmament, reconstruction and rehabilitation. The failure to disarm the clans was a serious flaw in the implementation phase of the UN operation in Somalia, but even this would have been insufficient without the

¹²⁶ See UNIFIL 'Background' at <<http://www.un.org/en/peacekeeping/missions/unifil/background.shtml>> (accessed 27 April 2012) and *Annual Review of Global Peace Operations 2007* (Lynne Rienner 2007) 82–87.

¹²⁷ M Heiberg and JJ Holst, 'Keeping the Peace in Lebanon: Assessing International and Multinational Peacekeeping' (1986) NUPI NOTAT No 357 Norwegian Institute of International Affairs 13–14. See also M Heiberg and JJ Holst, 'Peacekeeping in Lebanon – Comparing UNIFIL and the MNF' (1986) *Norwegian Institute of International Affairs* 406. It was submitted that since UNIFIL continued to operate as a legitimate military authority, inside the area of operation, the IDF did not exert exclusive control and therefore should not have been regarded as an Occupying Power.

¹²⁸ Human Rights Watch, *Civilian Pawns – Laws of War Violations and the Use of Weapons on the Israeli-Lebanon Border* (Human Rights Watch 1996) 35.

creation of a safe environment. To achieve this in south Lebanon, some accord had to be reached with Hizbollah. Working out a modus operandi in conjunction with Hizbollah was problematic on a number of fronts. It was a hard pill for some UNIFIL units to swallow and seemed to compromise freedom of movement while ceding authority to Hizbollah.

The Strategic Military Cell facilitated European engagement and rapid deployment of UNIFIL II. However, it had definite drawbacks and created tension at UN headquarters in New York which was replicated in the field. UN responses tend to rely on ad hoc solutions loosely based on basic doctrine. The early stages of deployment anticipated serious confrontations and planned accordingly. Though the situation did not escalate, this was the correct analysis at that time. However, matters did settle down and this should have prompted a lighter touch approach by UNIFIL II. UN peacekeeping relies more on diplomatic deterrence than military capabilities. Peacekeepers must be sensitive to the political context. It took longer than it should have for this basic principle to be relearned.

All peacekeeping operations need the support of the members of the Security Council, irrespective of the particular nature of the operation. Problems will arise when missions are ill-defined, and this was compounded in the case of UNOSOM in Somalia by a dispute about the authority to use force, and in Kosovo by uncertainty regarding the status of the province. UNIFIL II sought to address some of the deficiencies identified in the Brahimi Report which had called for more robust Rules of Engagement (ROE) in operations involving intra-state/transnational conflicts and bigger and better equipped forces.¹²⁹ It did not seem to take full cognizance of the fact that the use of force must be accompanied by political will, a clear mandate and strategy, a willingness to accept casualties, and a need for an effective command and control mechanism to ensure cohesion and uniform application. Compared to its predecessor, UNIFIL II was better equipped and had larger numbers to deal with any crisis that arose. However, the Strategic Mission Cell did not resolve the problems of multi-national command and deciding on a clear policy for dealing with unauthorized armed elements such as Hizbollah remained problematic. An enlarged UNIFIL II did help, but without agreement in the Security Council and among contributing states, combined with a willingness to use force, the increase in size was of limited value.

In many cases, the Security Council acts as if the mandate will be self-executing once the troops are deployed. When the initial UNIFIL mandate proved impractical, the *de facto* mission of the force became the provision of a secure environment for the local population. UNIFIL and Lebanon still confront major obstacles. There have been increased threats against UNIFIL from militant groups. Lebanese and Israeli forces have also clashed.¹³⁰ Israeli

¹²⁹ Brahimi Report (n 21).

¹³⁰ UN Doc S/201/565 (1 November 2010) para 9. Six UNIFIL personnel serving with the Spanish contingent were killed in a roadside explosion on 24 June 2007.

violations of Lebanese air space remain a cause of significant concern. In October 2006, the French contingent came close to firing on Israeli aircraft violating Lebanese air space.¹³¹ Such incidents highlight the volatility of the situation and the uncertainty surrounding the mandate and rules of engagement of UNIFIL. While Israeli forces have not harassed UNIFIL forces as happened in the early days of the 1978 operation, Israel and Syria have not collaborated to the extent required. The failure to deploy along the Lebanese/Syrian border is a glaring weakness in the current security arrangements and leaves a large gap for weapons smuggling.

The Secretary-General described UNIFIL as continuing 'to apply risk-management measures for its personnel'.¹³² The Secretary-General's report on UNIFIL in late 2011 makes it clear that it is reliant on the Lebanese forces to ensure its security.¹³³ This prompts the obvious question, how is such a predicament compatible with the mandate to protect civilians? If well trained Lebanese forces deploy in sufficient numbers then the need for an international UN force will be diminished. Unfortunately, the overall political situation remains fragile.¹³⁴ This is compounded by events throughout the region, especially in Syria. Attempts to restrict UNIFIL's freedom of movement by local civilians indicated that these were co-ordinated efforts.¹³⁵ Such incidents are potentially serious as they may reflect not only loss of confidence in UNIFIL, but also hostility among sections of the local population. It also makes the force look impotent which is bound to effect operational efficiency and morale.

Lebanon's fractured political landscape means that operating there is always fraught with political sensitivities. Perceptions of partiality can be compounded by close co-operation with local forces. In the circumstances, UNIFIL has little choice but to support government efforts to exercise effective authority. However, UNIFIL seems dependent on the Government for its security and protection. Such dependence is not consistent with performing an effective protection role. Efforts made in the past show how futile this can be against the overwhelming strength of the Israeli forces. The 2006 conflict demonstrates that it is not possible to provide effective protection to civilians in the context of armed hostilities between Israel and Hizbollah. Neither side seemed unduly concerned at the welfare of Lebanese or Israeli civilians. UNIFIL alone cannot deny armed groups freedom of movement and curtail their activities in the area of operations. In fact, UNIFIL appears dependent on the co-operation of armed groups to ensure its freedom of movement. Hizbollah cannot be

¹³¹ 'France Urges Israel to Stop Air Violations in Lebanon' *ABC News* (26 October 2006); 'France – Shots Almost Fired at Israeli Planes' *EJC Israeli Press Review* (10 November 2006); G Alon, 'French forces: Stop Lebanon overflights or we'll open fire' *Haaretz* (6 January 2007); *Le Monde* (Paris, 29 October 2006).

¹³² S/2010/565 (1 November 2010) para 54.

¹³³ S/2011/715 (14 November 2011) paras 60–61.

¹³⁴ S/2010/565 (1 November 2010) para 4 and S/2011/715, 14 November 2011) paras 60–61.

¹³⁵ *ibid.*

compared to a militia operating in the DRC. Its recognition as a legitimate resistance movement by the UN Secretary-General in 1986 clearly distinguished it from other armed elements. The political wing of Hizbollah was part of the Government of Lebanon in 2006. Disarming or otherwise confronting Hizbollah fighters remains problematic and is not likely to be undertaken by either Lebanese or UNIFIL troops in the future. Should hostilities resume, UNIFIL will find itself in a much more difficult situation than that of 1982 or 2006 as the sheer size of the force renders it likely to incur casualties.

It seems that all of Lebanon's neighbours are contributing in one way or another to its security problems. There are persistent reports pointing to breaches of the arms embargo along the Lebanese-Syrian border by Syria and Iran. Both have a vested interest in maintaining a weak central Government in Lebanon.¹³⁶ Israel claims that Hizbollah is rebuilding its military capacity, especially outside the UNIFIL area of operations.¹³⁷ It is widely believed that Syria is providing weapons to Hizbollah and Palestinian factions engaged in fighting Lebanese forces.¹³⁸ Such actions add considerably to the already difficult task confronting the over stretched Lebanese forces. The issues that precipitated the 2006 crisis are not yet resolved. Despite the presence of a large UNIFIL contingent, the overall political and security situation remains unpredictable. Unrest in Syria has a direct impact on Lebanon. It is likely there will be further conflict in Lebanon and the region as whole before the issues outlined are resolved. Although UNIFIL is authorised 'to take all necessary action . . . as it deems within its capabilities', its role in the protection of civilians is relatively minor and merely provides for the protection of those under imminent threat of physical violence. The primary responsibility remains that of the Lebanese Government. Unfortunately, a resumption of hostilities in south Lebanon is still a very real prospect. UNIFIL II will not deploy along the Lebanese-Syrian border and the flow of weapons into Lebanon is almost impossible to monitor and prevent. There has been little progress on prisoner exchanges and releases. In spite of the language used in resolution 1701, UNIFIL II, like UNIFIL, is essentially a Chapter VI policing mission. Although equipped with the superficial trappings of a more robustly mandated force, its mission is circumscribed by the mandate, underlying political and military realities of Lebanon, and the overall regional context.

¹³⁶ UN Doc S/2007/392 (28 June 2007) at para 59 and 60; UN Doc S/2011/565 (1 November 2010) paras 44 to 49 and S/2011/715 (14 November 2011) para 39.

¹³⁷ UN Doc S/2007/392 (28 June 2007) paras 25 and 29 and S/2011/715 (14 November 2011) paras 33–34.

¹³⁸ *ibid* para 32.